

Tentative Rulings for July 28, 2026 Department M302

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M302 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT IN-PERSON OR VIA ZOOM VIDEO WHEN REQUESTING ORAL ARGUMENTS.

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 672 7660**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

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1.

CASE #	CASE NAME	HEARING NAME
CVME2504483	PATTON VS VIMERCATI	MOTION FOR RELIEF FROM DEFAULT

Tentative Ruling: DENIED

2.

CASE #	CASE NAME	HEARING NAME
CVME2504483	PATTON VS VIMERCATI	MOTION FOR RECONSIDERATION OF APRIL 13, 2026 ORDER DENYING DEFENDANT'S MOTION FOR RELIEF FROM DEFAULT

Tentative Ruling: DENIED

3.

CASE #	CASE NAME	HEARING NAME
CVME2511791	DEGLER VS DEGLER	MOTION FOR ENTRY OF DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION BY SALE

Tentative Ruling: GRANTED

4.

CASE #	CASE NAME	HEARING NAME
CVME2517523	GAMEZ VS CWD WEST CORP.	MOTION TO STRIKE

Tentative Ruling: Off Calendar 07/22/26

5.

CASE #	CASE NAME	HEARING NAME
CVME2600208	CARRERA VS IBARRA	MOTION TO STRIKE

Tentative Ruling: Deny

On January 13, 2024, Plaintiff Evilio Carrera, Jr., an officer with the Menifee Police Department, was on duty in his patrol vehicle and driving at the intersection of Haun Road and New Hub Drive in Menifee. Defendant Bella M. Sule, erroneously sued and served as Ivet Ibarra, ("Defendant") failed to come to a complete stop at the intersection and struck the rear passenger wheel well causing him personal injuries. Plaintiff alleges officers on the scene detected a strong odor of marijuana emanating from Defendant's person and vehicle and she was arrested for suspicion of driving under the influence of drugs.

On January 1, 2026, Plaintiff Evilio Carrera, Jr. and his wife Minerva X. Carrera ("Plaintiffs"), filed the instant action alleging the following four causes of action against Defendant: 1) Negligence; 2) Negligence Per Se; 3) Exemplary Damages; and 4) Loss of Consortium.

Defendant now moves to strike the 3rd cause of action for Exemplary Damages and the prayer for punitive damages. (C.C.P., § 436.) Defendant argue Plaintiff has failed

to plead aggravating facts that would support punitive damages under *Taylor v. Superior Court* (1979) 24 Cal.3d 890. She argues she was released without any charges ever being brought.

In opposition, Plaintiffs argue they have alleged all predicate facts necessary for a claim for punitive damages. Whether the conduct is sufficiently despicable is a factual question not determined at the pleadings stage. Plaintiffs argue the existence or nonexistence of charges being brought is extrinsic and irrelevant. They request leave to amend in the event the Court concludes additional facts are needed.

As of July 27, 2026, at 1:15pm, no reply is available in eCourt.

Counsel for Defendant filed a meet and confer declaration in compliance with C.C.P., § 435.5. (Decl. of Matthew C. Anderson, ¶¶ 4-6.)

Malice is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294(c)(1).) Despicable conduct has been defined as bile, base or contemptible conduct. (*College Hospital, Inc. v. Sup. Ct.* (1994) 8 Cal.4th 704, 725.) Oppression is despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. (Civ. Code, § 3294(c)(2).) Fraud includes intentional misrepresentations, deceit and concealment of material facts. (*Id.* at (c)(3).)

Thus, with sufficiently alleged supporting facts, the specific allegation that Defendant was driving while intoxicated “with a conscious disregard for the safety of others” can be sufficient to support the element of “malice” under Civil Code § 3294. (*G.D. Searle, supra*, 49 Cal.App.3d at 32; *Taylor v. Sup. Ct.* (1979) 24 Cal.3d 890, 894-895; *Dawes v. Sup. Ct.* (1980) 111 Cal.App.3d 82, 88.)

In *Taylor*, the California Supreme Court recognized the pervasive risk in operating a motor vehicle while intoxicated because it combines “sharply impaired physical and mental faculties with a vehicle capable of great force and speed, [which] reasonably may be held to exhibit a conscious disregard of the safety of others.” (*Taylor, supra*. 24 Cal.3d 890, 896-897.) There, it was alleged in the complaint that defendant was an alcoholic, regularly drove under the influence of alcohol, had previously caused a serious motor vehicle accident, had been convicted of prior DUI’s, and was driving while drinking.

The Court noted those specific aggravating factors were not essential prerequisites to the assessment of punitive damage in drunk driving cases. (*Id.* at 896.) Nonetheless, the Court found these allegations sufficient to support a claim for punitive damages. **The *Taylor* Court held that voluntarily consumption of alcohol to the point of intoxication, when “knowing from the outset” that he or she must drive thereafter shows conscious disregard, and sufficiently alleges punitive damages claim. (*Taylor, supra*. 24 Cal.3d. at 895-900.)**

Here, Plaintiffs complaint alleges that on the day of the accident, Defendant smoked marijuana before driving “to the point of being under the influence or to the point that Defendant was unable to control her body or her faculty,” that she did so “despite knowing she would be operating a motor vehicle,” and that she was aware that driving under the influence carried a risk of serious injuries of others and proceeded to drive a vehicle anyway in conscious and wanton disregard for the rights and safety of others on the roadways. (Comp., ¶¶ 42-44.) As a direct result, Plaintiff Evelio Carrera, Jr., suffered injuries to his neck, mid-back, low back, and left elbow, along with headaches, requiring ongoing medical treatment. (*Id.* ¶¶ 45-47.) Said allegations appear sufficient for pleading purposes under *Taylor*.

5.

CASE #	CASE NAME	HEARING NAME
CVME2602860	WILLIAMS VS TESLA, INC	MOTION TO COMPEL BINDING ARBITRATION

Tentative Ruling: GRANT; stay issued.

Defendant moves to compel arbitration and stay the action pursuant to two arbitration provisions that Plaintiffs electronically accepted: the Motor Vehicle Order Agreement (the “Order Agreement”) on March 5, 2024, when Plaintiff placed the order for the Vehicle (Kim Decl., ¶¶3-4, Exh. 1, “Order Agreement”) and the Retail Installment Sales Contract (“RISC”) executed on May 15, 2024, when Plaintiffs took delivery of the Vehicle for the purchase on credit. (*Id.*, Exh. 2, “RISC”). The Order Agreement contained an opt-out provision that Plaintiffs did not utilize. (*Id.* at ¶7.) Defendant argues the Federal Arbitration Act (“FAA”) and California law require Plaintiffs to arbitration their claims, which fall within the scope of both arbitration clauses. Citing to *Sanchez v. Valencia Holding Co.* (2015) 61 Cal.4th 899, Defendant maintains the Agreement is not unconscionable.

In opposition, Plaintiffs argue Tesla failed to meet its burden to show Plaintiffs agreed to arbitrate under the Order Agreement because there is no evidence Plaintiffs signed or agreed to the terms of the Order Agreement, relying on *Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1296. Plaintiffs further argue the Order Agreement does not apply to Plaintiffs’ claims because it relates to the ordering of the Vehicle, not the subsequent purchase or any subsequent claims about Tesla’s failures to repair the Vehicle pursuant to warranty. Plaintiffs assert they never signed or agreed to arbitration contained in the RISC either. Lastly, the arbitration clauses are unconscionable.

In reply, Defendant points out Plaintiffs do not dispute that they placed the order themselves for the Vehicle, nor do they dispute the order process described by Raymond Kim (“Kim”), Defendant’s Manager of Business Resolution. Defendant argues Plaintiffs claims fall under the scope of the agreements to arbitrate, and Plaintiff relies on inapplicable authority to argue otherwise. Defendant maintains the arbitration provisions are not unconscionable. Defendant submits a supplemental declaration by Kim regarding the click through order process as evidence of Plaintiffs’ acceptance of the Order Agreement and the arbitration provision contained therein. (Kim Supp. Decl., ¶¶3-4.) “The general rule of motion practice...is that new evidence is not permitted with reply papers.” (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537; *Espejo v. SCPMG* (2016) 246 Cal.App.4th 1047; *Ruiz v. Moss* (2014) 232 Cal.App.4th 836.) However, there is a limited

exception to this rule in the context of motions to compel arbitration that allows a moving party to present rebuttal evidence in reply to establish foundation for the agreement's electronic signature. (*Espejo, supra*, 246 Cal.App.4th at 1056.) Because Plaintiffs disputed the validity of the Order Agreement, it is proper to consider evidence submitted with the reply that responds to the dispute.

It is unnecessary for the Court to take judicial notice of Exhibit 3, Plaintiff's Complaint, because the Court has authority to look through its own file. (See *Davis v. Southern California Edison Company* (2011) 236 Cal.App.4th 619, 632, fn. 11 [judicial notice of document included in appellate record is unnecessary].) The Court **DENIES** this request.

The Court **OVERRULES** Plaintiffs' objections to various portions of Kim's declaration as well as Exhibits 1 and 2 based on lack of personal knowledge, lack of foundation, lacks personal knowledge, and hearsay. Kim's declaration sufficiently lays foundation to allow him to testify as the custodian of records: he is the Manager of Business Resolution, is familiar with the service and sales of Tesla vehicles, is familiar with the record creating and keeping procedures, and the processes as of the date of the subject transaction involving Plaintiffs' purchase of the Vehicle. (Kim Decl., ¶2.) Kim further states Tesla stores the Order Agreement and RISC relating to the transaction in an electronic file, and such information is kept in the ordinary course of business. (*Id.* at ¶¶5, 11.)

"The custodian of a document need not have been present or employed when the document was created or signed to authenticate a document in a company's files." (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 758.) Any qualified witness knowledgeable about documents may lay foundation for business records. (See *Estate of O'Connor* (2017) 16 Cal.App.4th 674, 694; Evid. Code, § 1400 ["Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by any other means provided by law"].)

The court must grant the petition to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement, or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Code Civ. Proc., § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. Rules of Court, rule 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-219.) This rule does not require the petitioner to authenticate the agreement or do anything more than allege its existence and attach a copy. (*Condee, supra*, 88 Cal.App.4th at 218-219.) Once this is done, the burden shifts to the opposing party to demonstrate the falsity of the purported agreement. (*Id.*)

Defendant argues, and Plaintiffs do not dispute, the FAA applies.

The Order Agreement is silent as to whether the FAA or state law applies. However, when the underlying agreement relied upon to compel arbitration evidences transactions involving commerce, as defined by the FAA (9 U.S.C. § 1 et seq.), federal law governs the interpretation of the agreements. (*Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th 209, 219, citing *Turtle Ridge Media Group, Inc. v. Pacific Bell Directory* (2006) 140 Cal.App.4th 828, 832.) Defendant argues automotive sale contracts necessarily involve interstate commerce. Plaintiff does not argue to the contrary. Thus, the FAA applies to the Order Agreement.

Likewise, the FAA applies to the RISC, which provides, “Any arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (RISC, pg. 5, ¶3.) As the Agreement provides for the FAA to govern, then it governs. (*Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.App.4th 376, 394; *Aviation Data, Inc. v. American Express Travel Related Services Company, Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535.)

Under both federal and state statutes, the threshold question when presented with a petition to compel arbitration is whether there is an agreement to arbitrate. (*Cheng-Canindin v. Renaissance Hotel Assocs.* (1996) 50 Cal.App.4th 676, 684; See 9 U.S.C. §2; Code Civ. Proc., § 1281.) A party moving to compel arbitration can meet its “initial burden to show an agreement to arbitrate by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.” (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) **“The [trial] court is only required to make a finding of the agreement’s existence, not an evidentiary determination of its validity.”** (*Id.* at 1058, emphasis added.) For this initial burden, “‘it is not necessary to follow the normal procedures of document authentication.’ [Citation.]” (*Id.* at 1058.) A copy of the Order Agreement and RISC are attached to Kim’s declaration, satisfying Defendant’s initial burden. (*Id.* at 1060.)

Order Agreement. The Order Agreement contains an arbitration provision, which states:

If not resolved within 60 days, you agree that any dispute arising out of or relating to any aspect of the relationship between you and Tesla will not be decided by a judge or jury but instead by a single arbitrator in an arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules. This includes claims arising before this Agreement, such as claims related to statements about our products. You further agree that any dispute related to the arbitrability of your claims will be decided by the court rather than an arbitrator, notwithstanding AAA rules to the contrary...

...You may opt out of arbitration within 30 days after signing this Agreement by sending a letter to: Tesla, Inc.; P.O. Box 15430; Fremont, CA 94539-7970, stating your name, Order Number or Vehicle Identification Number, and intent to opt out of the arbitration provision. If you do not opt out, this agreement to arbitrate overrides any different arbitration agreement between us, including any arbitration agreement in a lease or finance contract.

(Kim Decl., Exh. 1.)

Once the moving party alleges the existence of an agreement, the burden shifts to the responding party to prove the falsity of the purported agreement. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.) Thus, the burden now shifts to Plaintiffs.

Plaintiffs argue no arbitration agreement exists. Williams submitted his own declaration stating he “did not see any information at that time regarding arbitration of any claims or disputes, or any hyperlinks regarding terms and conditions” and that he “did not sign or initial anything agreeing to an arbitration provision associated with [his] order.” (Williams Decl., ¶¶2-3.)

Kim testified that Plaintiffs would not have been able to place his order of the Vehicle without clicking on the “Place Order” button. (Kim Supp. Decl., ¶4.) Contrary to William’s claim that he did not see any hyperlinks regarding terms and conditions, Kim states, “Immediately above the ‘Place Order’ button would have appeared text advising Plaintiffs that by clicking ‘Place Order’ he would be agreeing to terms and conditions of the Order Agreement.” (*Ibid.*) “The [Order Agreement] appeared in underlined font and was displayed as hyperlink. **If Plaintiff (sic) clicked on this hyperlink**, a new window would have opened revealing the agreement or policy described in the hyperlink.” (*Ibid.*, emphasis added.) Defendant provides a copy of the webpage Plaintiffs would have seen when placing the order for the Vehicle. (*Ibid.*, Exh. 3.) Indeed above “Place order” is the language, “By placing this order, I agree to the **Model 3 Order Agreement, Terms of Use**, and **Privacy Notice**.” (*Id.* emphasis included)

“On the internet, a manifestation of assent may be inferred from the consumer’s actions on the website – including, for example, checking boxes and clicking buttons. Courts have generally enforced agreements to arbitrate formed via ‘clickwrap,’ where an internet user accepts a website’s terms of use by clicking an ‘I agree’ or ‘I accept’ button, with a link to the agreement readily available.’ Clickwrap agreements have been held to manifest assent, even on consumers who did not read them, because the website has put the consumer on constructive notice of the contractual terms.” (*Weeks v. Interactive Life Forms, LLC* (2024) 100 Cal.App.5th 1077, 1084-1085 [internal citations and punctuation omitted], *quoting Sellers v. JustAnswer LLC* (2021) 73 Cal.App.5th 444, 461, 463.) In contrast, “browsewrap provisions differ from clickwrap because they operate under the theory that the user accepts a website’s terms of use merely by browsing the site.” (*Weeks, supra*, 100 Cal.App.5th at 1085 [internal citations and punctuation omitted], *quoting Sellers, supra*, 73 Cal.App.5th at 463.)

The “If Plaintiff clicked on this hyperlink” language found in Kim’s supplemental declaration demonstrates lack of evidence of actual notice of the Terms of Use on Plaintiff’s part.

When the defendant does not present evidence that the plaintiff had actual notice of the Terms of Use, the defendant is required to establish contract formation on a constructive or inquiry notice theory. (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1296; *Sellers, supra*, 73 Cal.App.5th at 435; see Civ. Code § 19 [defining constructive notice].) To succeed on this theory, the defendant needs to show that it provided the user with reasonably conspicuous notice of the existence of the terms to which they were to be bound. (*Herzog, supra*, 101 Cal.App.5th at 1296.) Defendant is required to show that the contents of its legal screen support the inference that the user’s action on that screen, clicking the checkbox, constitutes an unambiguous manifestation of assent to those terms, including the arbitration provision. (*Ibid*; *Sellers, supra*, 73 Cal.App.5th at 469 [reasonably conspicuous notice of the existence of contract terms and unambiguous manifestation of assent to those terms by consumers are essential if electronic bargaining is to have integrity and credibility].)

Exhibit 3 to Kim’s supplemental declaration demonstrates reasonably conspicuous notice of the existence of contract terms and unambiguous manifestation of assent to those terms by consumers to establish contract formation, especially given Williams does not deny placing the purchase order of the Vehicle. (Williams Decl., ¶5; *Herzog, supra*, 101 Cal.App.5th at 1296; *Sellers, supra*, 73 Cal.App.5th at 469 [the textual notice found further down the page below the clicked button was found not sufficiently conspicuous to establish constructive notice of the terms of service].)

RISC. The RISC provides contains an arbitration provision, which states, “Either you or we may choose to have any dispute between you and us decided by arbitration and not in court or by jury trial.” (RISC, pg. 5, ¶1.)

According to Kim, the signed RISC only appears in the electronic file after a consumer has executed the RISC either in person or electronically, which Plaintiffs did on or about May 15, 2024. (Kim Decl., ¶13.)

In opposition, Williams testified that when he picked up the Vehicle from Tesla, he was not presented with and did not sign any paperwork. (Williams Decl., ¶6.)

In *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 839, the court held defendants failed to authenticate plaintiff’s electronic signature when defendant summarily asserted that plaintiff electronically signed the arbitration agreement in question. Indeed, the plaintiff averred in an opposing declaration that he may have signed such agreement but did not recall. (*Id.* at 840.) The court found defendant did not prove by a preponderance of the evidence that plaintiff was the person who electronically signed the agreement pursuant to Civil Code section 1633.9 such that it was “the act of” the plaintiff. (*Id.* at 843-844.) Applying *Ruiz*, William’s declaration is sufficient to challenge authenticity of the electronic signature found on the RISC.

In reply, Kim testified that to execute the RISC for the purchase of the Subject Vehicle, Williams was first prompted on his mytesla.com account to review the Consent

to Electronic Transactions document and to select “Accept” if they agreed, which Plaintiffs did here. (Kim Supp. Dec., ¶15, Exh. 4.) Once Plaintiff selected “Accept” to the Consent to Electronic Transactions document, the RISC is then generated. (*Id.* at ¶16.) **The RISC would never be generated electronically unless a consumer selects “Accept” to the Consent to Electronic Transactions document, which Plaintiff did here.** (*Ibid.*, emphasis added.) Once the RISC is generated, the buyer receives a message to log into their account to review and electronically execute the RISC. (*Id.* at ¶17.) “To do so, the buyer must enter their date of birth information for verification. Once verified, the buyer is shown the finalized RISC with exact details as to be executed. Once the buyer electronically confirms that they accept the terms of the RISC, their digital signature is applied to the documents, as was done here on June 30, 2025. Only after a RISC is executed can the buyer then physically accept delivery of the vehicle, as was done here. **A buyer would never able (sic) to physically accept delivery of a vehicle without having completed these steps.**” (*Ibid.*, emphasis added.)

Kim’s supplemental declaration provides the necessary details to establish the electronic signature on the RISC was “the act of” Plaintiff (See *Espejo, supra*, 246 Cal.App.4th at 1051-1054, 1062; Civ. Code § 1633.9 [“An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable”].)

Based on the foregoing, Defendant satisfied its burden of establishing the existence of valid arbitration agreements under the RISC.

The Order Agreement provides, “If you have a concern or dispute, please send a written notice describing it and your desired resolution to resolutions@tesla.com. If not resolved within 60 days, you agree that **any dispute arising out of or relating to any aspect** of the relationship between you and Tesla will not be decided by a judge or jury but instead by a single arbitrator in an arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules. This includes claims arising before this Agreement, such as claims related to statements about our products.” (Order Agreement, pg. 2, emphasis added.)

The RISC provides, “Either you or we may choose to have any dispute between you and us decided by arbitration and not in court or by jury trial.” (RISC, pg. 5, ¶1.) The RISC further states, “Any claim or dispute, whether in contract, tort, **statute** or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or **condition of this Vehicle**, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract), shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.” (*Id.*, pg. 5, emphasis added.)

It is undisputed both agreements cover the parties here.

Defendant argues Plaintiffs' claims fall squarely within the broad scope of both arbitration clauses, as evidenced by the portions emphasized above in both clauses.

Conversely, as to the Order Agreement, Plaintiffs argue it can only be reasonably interpreted to have Plaintiffs expressly agree to arbitrate disputes relating to the order for a Tesla vehicle. Plaintiffs contend the entire Terms and Conditions relate to the order of the Vehicle, not the subsequent purchase or any subsequent claims about Tesla's failures to repair the Vehicle pursuant to warranty. However, this argument is meritless given the plain language of the Order Agreement stating it covers "any dispute arising out of or relating to any aspect" and the opt-out agreement.

The burden is on the party opposing a petition to compel arbitration to show the arbitration agreement cannot be interpreted to cover the dispute in question. (*Buckhorn v. St. Jude Heritage Medical Group* (2004) 121 Cal.App.4th 1401, 1406.)

Plaintiffs argue the warranty issued by Defendant is separate from the arbitration clause of the Order Agreement, thus Plaintiffs' claims do not fall within the scope of the arbitration clause. Plaintiffs rely on cases such as *Ochoa v. Ford Motor Co. (In re Ford Motor Warranty Cases)* (2023) 89 Cal.App.5th 1324, *Ngo v. BMW of North America, LLC* (9th Cir. 2022) 23 F.4th 942, and *Montemayor v. Ford Motor Co.* (2023) 92 Cal.App.5th 958 for the proposition that a manufacturer's warranty is a separate contract from the sales contract. This argument fails for two reasons.

First, the Order Agreement contains a clear and unambiguous supersession clause: "If you do not opt out, **this agreement to arbitrate overrides any different arbitration agreement between us**, including any arbitration agreement in a lease or finance contract. (Order Agreement, pg. 2, emphasis added.) This clause addresses the exact situation here. By its plain language, it establishes the Order Agreement's arbitration clause as the controlling provision for all disputes. Plaintiffs had the opportunity to opt out of this provision but failed to do so. (Kim Decl., ¶7.) The parties therefore expressly agreed that the Order Agreement's arbitration terms would govern.

Further, the cases Plaintiffs rely on are distinguishable. The manufacturer was a non-signatory to the sales contract containing the arbitration clause. The courts in Plaintiffs' cited cases held that the manufacturer could not rely on equitable estoppel to compel arbitration of warranty claims because the warranty obligations were independent of the sales contract between the consumer and the dealer. Here, Defendant is a direct signatory to both the Order Agreement and the RISC.

Indeed, in 2025, the Supreme Court of California again dealt with the same argument that Plaintiffs advance here in *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122. There, plaintiffs in consolidated cases bought cars from various dealerships, signing sales contracts that included an arbitration provision. (*Id.* at 1125.) Plaintiffs sued the manufacturer, Ford Motor Company, instead of the dealerships, alleging defects in the cars violated express and implied warranties and that Ford engaged in fraudulent concealment. (*Id.* at 1125-1126.) Ford sought to compel arbitration based on the arbitration clause in the sales contracts between the buyers and dealerships. (*Id.* at 1126.) The dealership expressly disclaimed any warranty in the sales contracts. (*Id.*) Ford

argued plaintiffs should be estopped from pursuing remedies in court. (*Id.*) Resolving a split of authority, the California Supreme Court held that a manufacturer's express and implied warranty obligations arise independently of a dealership's sales or lease contract. (*Id.* at 1135 ["The warranties upon which plaintiffs' claims rest are independent of the sales contracts, not intimately intertwined with them."].) The court reasoned that a manufacturer's duties "arise from a statutory scheme separate and apart from the contracts" (*id.* at 1133) and that "warranty obligations appear nowhere in the sales contract." (*Id.* at 1136.) The plaintiffs' claims there were found on statutory obligations and fraud allegations, not the sales contract. (*Id.* at 1137.) The Supreme Court expressly disapproved of the contrary line of reasoning in *Felisilda v. FCA US LLC* (2020) 53 Cal.App.5th 486, which had found that the dealership sales contract was the "source" of the warranties.

Accordingly, Plaintiffs' argument fails. Because the arbitration clause applies to "any dispute arising out of or relating to any aspect of the relationship between" Plaintiffs and Defendant, Plaintiffs' warranty claims fall within the scope of the arbitration provision of the Order Agreement.

RISC. The RISC provides for "any claim.... statute or otherwise...between you and us...which arises out of or relates to your credit application, purchase or **condition** of this Vehicle...shall....be resolved by neutral, binding arbitration." (RISC, pg. 5.)

Because defects to the Vehicle relate to the condition of the Vehicle, Plaintiffs' claims fall within the scope of the arbitration provision of the RISC based on the plain language.

Defendants met their burden in proving the existence of valid arbitration agreement between the parties. Plaintiff failed to meet his burden in challenging the validity of the agreements.

Plaintiffs bear the burden of demonstrating a defense and argue **unconscionability**. There must be a finding of both procedural unconscionability and substantive unconscionability. (*Armendariz v. Foundation Health Psychcare Services* (2000) 24 Cal.4th 83, 114.) It is based on a sliding scale. (*Mills v. Facility Solutions Group, Inc.* (2022) 84 Cal.App.5th 1035, 1050.) Procedural unconscionability concerns the way the contract was negotiated and the parties' circumstances at that time and focuses on the factors of oppression or surprise. (*Sanchez v. Western Pizza Enterprises, Inc.* (2009) 172 Cal.App.4th 154, 173.) "Substantive unconscionability focuses on the one-sidedness or overly harsh effect of the contract term or clause." (*Lhotka v. Geographic Expeditions, Inc.* (2010) 181 Cal.App.4th 816, 824-825.)

For procedural unconscionability, Plaintiffs argue the clauses in both documents are adhesive. Plaintiffs assert they had no ability to negotiate the non-financial terms of the contract, although they concede they were able to negotiate the financial terms of the purchase. Plaintiffs contend that waiting until after they had warranty issues to suddenly assert that he cannot maintain the claims and mandatory arbitration applies is unfairly one sided.

Adhesion contracts, contracts presented on a take-it-or-leave-it basis are not rendered unenforceable without the presence of other factors. Plaintiff ignores the fact that there is an opt-out provision. The presence of a meaningful opportunity to opt out of an arbitration provision can defeat a claim of oppression. (See, e.g., *Circuit City Stores, Inc. v. Mantor* (9th Cir. 2003) 335 F.3d 1101, 1106.) There appears to be no evidence of surprise, oppression, or unfair tactics surrounding the presentation or execution of the Order Agreement and RISC. Plaintiffs sought to purchase the Vehicle and clicked on the purchase button. Plaintiffs conducted the entire transaction in their own personal setting without interference from Defendant. There is no evidence that Plaintiffs were otherwise prevented from reading the Agreement. Thus, Plaintiffs failed to establish procedural unconscionability.

For substantive unconscionability, Plaintiffs argue the clauses are one-sided. However, Plaintiffs fail to point to any provision of the agreements that is one sided. Indeed, both clauses are equally applicable to both parties. Plaintiffs fail to meet their burden by proving unconscionability.

6.

CASE #	CASE NAME	HEARING NAME
CVME2608072	HIRZEL VS MURRIETA VALLEY UNIFIED SCHOOL DISTRICT	PETITION FOR RELIEF FROM GOVERNMENT TORT CLAIM REQUIREMENT

Tentative Ruling: GRANTED; NO OPPOSITION FILED

7.

CASE #	CASE NAME	HEARING NAME
CVSW2403936	GARCIA VS FORD MOTOR COMPANY	MOTION FOR ATTORNEY'S FEES

Tentative Ruling: NOTICE OF NON-OPPOSITION FILED; GRANTED